

ASCII MASTER FLOW – PANEL 1/12: Party as democratic intermediary, not constitutional sovereign

ROOT QUESTION

How can parties aggregate citizens and govern without becoming private constitutional sovereigns?

DEMOCRATIC FUNCTIONS

representation | aggregation | recruitment | programme choice
| government | opposition | legislative coordination | accountability.

LEGAL LOCATION

original Constitution: no comprehensive party code.

Tenth Schedule: defection only.

RPA 1951: registration, contribution and disclosure fields.

Symbols Order 1968: recognition and symbol disputes.

TENSION

public democratic power <-> Article 19(1)(c) associational autonomy.

MUST REMEMBER: Separate Section 29A registration, Symbols Order recognition, Tenth Schedule discipline, finance disclosure and candidate regulation.

SECTION 29A

association applies to ECI -> memorandum/rules -> allegiance declaration
to Constitution, socialism, secularism, democracy, sovereignty, unity and integrity.

REGISTRATION != RECOGNITION

registration creates statutory party status;
recognition follows Symbols Order performance criteria.

Indian National Congress v. Institute of Social Welfare (2002)

ECI has no general review/deregistration power;
narrow cancellation survives for fraud, foundational disqualification or analogous grounds.

TRAP

loss of recognition, symbol consequence and deregistration are different legal events.

ASCII MASTER FLOW – PANEL 3/12: Recognition and symbol architecture without freezing party lists

SYMBOLS ORDER 1968

recognised National party | recognised State party | registered-unrecognised party.

NATIONAL: ANY ONE DATED ROUTE

6% valid votes in four or more States + four Lok Sabha seats
| 2% Lok Sabha seats from at least three States
| State-party recognition in four States.

STATE: ANY ONE DATED ROUTE

vote-plus-seat tests | 3% or three Assembly seats | Lok Sabha ratio route | 8% vote route.

PRIVILEGE

reserved symbol and specified electoral facilities.

CONTROL

criteria are Order-based and re-verifiable; do not freeze the current party list.

ASCII MASTER FLOW – PANEL 4/12: Party system evolution, regionalisation and coalition federalism

EVOLUTION

1952-1967 Congress system -> 1967 fragmentation
-> 1977 alternation -> 1989-2014 coalition bargaining
-> 2014/2019 single-party Union majorities
-> coalition-supported Union government after the 2024 election
-> continued strong State-party competition.

PARTY-SYSTEM TYPES

one-party dominance | two-party tendency | multi-party competition | coalition system.

REGIONAL PARTIES

identity representation + State autonomy + policy innovation
<-> personalisation + fragmentation + bargaining cost.

2022 GS-II

centralisation/autonomy preference follows organisational position and power incentives,
not a permanent ideological law.

ASCII MASTER FLOW – PANEL 5/12: Internal democracy, membership, candidates and dynastic control

MEMBERSHIP

published eligibility -> reliable roll -> notice/hearing for discipline -> appeal.

LEADERSHIP

periodic election -> real competition -> transparent counting -> State-unit voice.

CANDIDATES

local consultation + published criteria + integrity + representativeness
<-> dynasty + money + winnability + central nomination.

CURRENT GAP

ECI receives organisational particulars but no comprehensive statutory
internal-democracy code exists.

REFORM LIMIT

minimum process safeguards must not authorise State selection of ideology or leaders.

ASCII MASTER FLOW – PANEL 6/12: Finance and the electoral-bonds constitutional reset

STATUTORY SPINE

RPA Section 29B: contributions subject to foreign-source prohibition.

Section 29C: report contributions exceeding Rs 20,000; tax-relief consequence.

FCRA 2010: political parties cannot accept foreign contribution.

Association for Democratic Reforms v. Union of India (2024)

Electoral Bond Scheme and enabling anonymity/unlimited-corporate changes struck down;

voter Article 19(1)(a) right to information protected; SBI-ECI disclosure ordered.

LIMIT

The verdict removed one opacity mechanism; it did not enact a complete finance code.

CURRENT LAW: 5 SEPTEMBER 2026

ADR, 2024 INSC 113, remains the controlling electoral-bonds judgment.

It invalidated the scheme and enabling amendments; it did not enact a complete replacement campaign-finance code.

CLOSE DISTINCTION: Do not convert the ECI's bounded registration/symbol powers into a general power to control internal democracy or deregister parties on the merits.

ASCII MASTER FLOW – PANEL 7/12: Whips, anti-defection and party-symbol identity

PARTY ORGANISATION

membership, leadership and candidate selection.

LEGISLATURE PARTY

members of the House belonging to the political party.

TENTH SCHEDULE

voluntary giving up | vote/abstention direction | merger | presiding-officer decision.

SYMBOLS ORDER

ECI decides rival-faction symbol/recognition questions.

Sadiq Ali v. Election Commission of India (1972)

majority in organisational and legislative wings informs symbol identity.

TRAP

symbol dispute, internal leadership, whip authorisation and defection are related but legally separate proceedings.

ASCII MASTER FLOW – PANEL 8/12: Criminalisation, disclosure and NOTA limits

Union of India v. Association for Democratic Reforms (2002) + PUCL (2003)
candidate criminal, financial and educational disclosure protects informed voting.

Public Interest Foundation (2018)
no judicially invented pre-conviction ban; wider publicity ordered.

Rambabu Singh Thakur v. Sunil Arora (2020)
parties publish pending cases and qualification-based selection reasons.

Lily Thomas v. Union of India (2013)
Section 8(4) shield invalid; disqualification follows conviction.
A stay of conviction differs from suspension of sentence.

LIMIT
due process and speedy trials must accompany disclosure.

People's Union for Civil Liberties (2013)
NOTA protects negative secret choice but does not trigger automatic re-poll.

ASCII MASTER FLOW – PANEL 9/12: Donations, disclosure and foreign-source controls

RECEIPT

Section 29B permission -> company/tax controls -> FCRA foreign-source prohibition.

DISCLOSURE

Section 29C: contributions exceeding Rs 20,000

-> treasurer report to ECI before income-tax return due date

-> non-compliance affects tax relief.

TRACEABLE ROUTES

banking channel | electoral trust | audited party account | beneficial ownership.

DO NOT CONFLATE

party contribution reporting != candidate expenditure

| tax cash limit != Section 29C threshold

| lawful privacy != blanket donor anonymity.

ASCII MASTER FLOW – PANEL 10/12: Judgment chain and bounded institutional powers

Sadiq Ali v. Election Commission of India (1972) -> symbol identity uses organisational and legislative support.

Union of India v. Association for Democratic Reforms (2002)

-> candidate information and informed voting.

PUCL (2003) -> disclosure safeguards sustained.

Institute of Social Welfare (2002) -> no general ECI deregistration power.

Lily Thomas v. Union of India (2013) -> Section 8(4) protection invalid.

Public Interest Foundation (2018) -> no court-created pre-conviction ban.

Rambabu Singh Thakur v. Sunil Arora (2020) -> party publicity and selection reasons.

Association for Democratic Reforms v. Union of India (2024)

-> electoral-bond anonymity struck down.

CONTROL

State the exact proposition; do not turn a direction or narrow exception into a general power.

People's Union for Civil Liberties (2013) -> NOTA as negative secret choice.

ASCII MASTER FLOW – PANEL 11/12: PYQ demand decoding and executable answer spine

2022 GS-II Q13

test centralisation/autonomy proposition -> incentives and organisation

-> coalition chronology -> counter-evidence -> institutional federal safeguards -> verdict.

OTHER HIGH-YIELD DEMANDS

internal democracy | regulation at edges/interior | finance after 2024

| criminalisation | coalition federalism | fragmented oversight.

ANSWER METHOD

opening thesis -> correct legal source -> mechanism -> named evidence

-> limitation/counter -> proportionate reform -> one-line verdict.

QUALITY CONTROL

exact year/paper/marks/words | no party-list padding | answer-specific compression.

ASCII MASTER FLOW – PANEL 12/12: UPSC answer synthesis and reform balance

PRELIMS FIREWALL

29A registration != recognition | reserved != free symbol
| recognition loss != deregistration | disclosure != disqualification
| NOTA != re-poll | party != legislature party | bonds verdict != finance code.

MAINS SPINE

democratic role -> segmented legal basis -> party-system evolution
-> internal democracy -> finance -> criminalisation -> whip/symbol interfaces
-> autonomy-transparency balance -> reform.

REFORM PACKAGE

verified internal elections | candidate criteria | donation transparency
| independent audit | trial expedition | narrow deregistration amendment
| proportionate ECI power + judicial review.

VERDICT

regulate the party's public consequences while preserving its legitimate associational core.

LEGAL/SOURCE LIMIT: The 2024 electoral-bonds judgment remains controlling; recognition lists,
party counts, officeholders and election-specific symbol concessions are not frozen.